

HOUSE BILL 2443

By Rudder

AN ACT to amend Tennessee Code Annotated, Title 34,
Chapter 1; Title 36, Chapter 5 and Title 37,
Chapter 1, relative to child support.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 34-1-102, is amended by deleting subsection (b) and substituting:

(b) Parents shall continue to be responsible for the support of each child for whom they are responsible after the child reaches eighteen (18) years of age if the child is enrolled in an accredited high school. The duty of support continues until the child graduates from high school or the class of which the child is a member when the child attains eighteen (18) years of age graduates, whichever occurs first, but in no event shall support continue after the child reaches nineteen (19) years of age unless the child is handicapped or disabled, as provided in § 36-5-101(k).

SECTION 2. Tennessee Code Annotated, Section 36-5-101, is amended by deleting subdivision (g)(6)(B)(i) and substituting:

(i) The department's records demonstrate that the child for whom an order of support in a Title IV-D child support case has been entered has reached eighteen (18) years of age and has graduated from high school, or that the class of which the child is a member when the child reached eighteen (18) years of age has graduated from high school, the obligor has otherwise provided the department with written documentation of such facts, or the obligor has provided the department with written documentation that a child for whom the obligor is required to pay support has died or has married; provided,

however, that in no event shall support continue after the child reaches nineteen (19) years of age except as provided in subsection (k);

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.